

# **Bangladesh Legal Acts Compiled Extract**

## **The Districts Act, 1836 - Power to create new Districts**

It shall be lawful for the

## **The Public Accountant's Default Act, 1850 - [Repealed]**

6. [Repealed by the Repealing Act, 1870 (Act No. XIV of 1870).]

## **The Public Accountant's Default Act, 1850 - Public Accountants to give security**

1. Every public accountant shall give security for the due discharge of the trusts of his office, and for the due account of all moneys which shall come into his possession or control, by reason of his office.

## **The Public Accountant's Default Act, 1850 - Amount and kind of security, and with what sureties**

2. In default of any Act having special reference to the office of any public accountant, the security given shall be of such amount and kind, real or personal, or both, and with such sureties (regard being had to the nature of the office), as shall be required by any rules made or to be made from time to time, by the authority by which each public accountant is appointed to his office.

## **The Public Accountant's Default Act, 1850 - “Public accountant” defined**

3. For the purposes of sections 1 and 2 of this Act, the expression “public accountant” means any person who as Official Assignee or Trustee, or as sarbarahkar, is entrusted with the receipt, custody or control of any moneys or securities for money, or the management of any lands belonging to any other person or persons; and for the purposes of sections 4 and 5 of this Act the expression shall also include any person who, by reason of any office held by him in the service of the State is entrusted with the receipt, custody or control of any moneys or securities for money, or the management of any lands belonging to the Government.

## **The Public Accountant's Default Act, 1850 - Prosecution of accountants and sureties**

4. The person or persons at the head of the office to which any public accountant belongs may proceed against any such public accountant and his securities for any loss or defalcation in his accounts, as if the amount thereof were an arrear of land-revenue due to Government.

## **The Public Accountant's Default Act, 1850 - Enactments applied to proceedings by and against accountants**

5. All Regulations and Acts now or hereafter to be in force for the recovery of arrears of land-revenue due to Government, and for recovery of damages by any person wrongfully proceeded against for any such arrear shall apply, with such changes in the forms of procedure as are necessary to make them applicable to the case, to the proceedings against and by such public accountant.

## **The Judicial Officer's Protection Act, 1850 - Non-liability to suit of officers acting judicially, for official acts done in good faith, and of officers executing warrants and orders**

1. No Judge, Magistrate, Justice of the Peace, Collector or other person acting judicially shall be liable to be sued in any Civil Court for any act done or ordered to be done by him in the discharge of his judicial duty, whether or not within the limits of his jurisdiction: Provided that he at the time, in good faith, believed himself to have jurisdiction to do or order the act complained of; and no officer of any Court or other person, bound to execute the lawful warrants or orders of any such Judge, Magistrate, Justice of the Peace, Collector or other person acting judicially shall be liable to be sued in any Civil Court, for the execution of any warrant or order, which he would be bound to execute, if within the jurisdiction of the person issuing the same.

## **The Public Servants (Inquiries) Act, 1850 - Penalty for disobedience to process**

9. All persons disobeying any lawful process issued as aforesaid for the purposes of the commission shall be liable to the same penalties as if the same had issued originally from the Court or other authority through whom it is executed.

## **The Public Servants (Inquiries) Act, 1850 - Powers of commissioners. Their protection Service of their process Powers of Court, etc., acting under commission**

8. The commissioners shall have the same power of punishing contempt's and obstructions to their proceedings, as is given to Civil and Criminal Courts by the

## **The Public Servants (Inquiries) Act, 1850 - Power of Government to abandon prosecution and to allow accuser to continue it**

7. At any subsequent stage of the proceedings, the Government may, if it think fit, abandon the prosecution, and in such case may, if it think fit, on the application of the accuser, allow him to continue the prosecution, if he is desirous of so doing, on his furnishing such security as is hereinbefore mentioned.

## **The Public Servants (Inquiries) Act, 1850 - Articles of charge to be drawn out for public inquiry into conduct of certain public servants**

2. Whenever the Government shall be of opinion that there are good grounds for making a formal and public inquiry into the truth of any imputation of misbehaviour by any person

## **The Public Servants (Inquiries) Act, 1850 - Conduct of Government prosecution**

4. When the Government shall think fit to conduct the prosecution, it shall nominate some person to conduct the same on its behalf.

## **The Public Servants (Inquiries) Act, 1850 - Authorities to whom inquiry may be committed Notice to accused**

3. The inquiry may be committed either to the Court, Board or other authority to which the person accused is subordinate, or to any other person or persons, to be specially appointed by the Government, commissioners for the purpose: notice of which commission shall be given to the person accused ten days at least before the beginning of the inquiry.

### **The Public Servants (Inquiries) Act, 1850 - Procedure at beginning of inquiry Non-appearance of accused and admission of charge**

11. At the beginning of the inquiry the prosecutor shall exhibit the articles of charge to the commissioners, which shall be openly read, and the person accused shall thereupon be required to plead "guilty" or "not guilty" to each of them, which pleas shall be forthwith recorded with the articles of charge. If the person accused refuses, or without reasonable cause neglects, to appear to answer the charge either personally or by his counsel or agent, he shall be taken to admit the truth of the articles of charge.

### **The Public Servants (Inquiries) Act, 1850 - [Repealed]**

1. [Repealed by the Repealing Act, 1870 (Act No. XIV of 1870).]

### **The Public Servants (Inquiries) Act, 1850 - Charge by accuser to be written and verified. Penalty for false accusation. Institution of inquiry by Government**

5. When the charge shall be brought by an accuser, the Government shall require the accusation to be reduced to writing, and verified by the oath or solemn affirmation of the accuser; and every person who shall wilfully and maliciously make any false accusation under this Act, upon such oath or affirmation, shall be liable to the penalties of perjury, but this enactment shall not be construed to prevent the Government from instituting any enquiry which it shall think fit, without such accusation on oath or solemn affirmation as aforesaid.

### **The Public Servants (Inquiries) Act, 1850 - Prosecutor's right of address**

12. The prosecutor shall then be entitled to address the commissioners in explanation of the articles of charge, and of the evidence by which they are to be proved: his address shall not be recorded.

### **The Public Servants (Inquiries) Act, 1850 - Copy of charge and list to be furnished to accused**

10. A copy of the articles of charge, and list of the documents and witnesses by which each charge is to be sustained, shall be delivered to the person accused, at least three days before the beginning of the inquiry, exclusive of the day of delivery and the first day of the inquiry.

### **The Public Servants (Inquiries) Act, 1850 - Power to admit or call for new evidence for prosecution Accused's right to adjournment**

14. If it shall appear necessary before the close of the case for the prosecution, the commissioners may in their discretion allow the prosecutor to exhibit evidence not included in the list given to the person accused, or may themselves call for new evidence; and in such case the person accused shall be entitled to have, if he demand it, adjournment of the proceedings for three clear days, before the exhibition of such new evidence exclusive of the day of adjournment and of the day to which the proceedings are adjourned.

## **The Public Servants (Inquiries) Act, 1850 - Evidence for defence and examination of witnesses**

16. The evidence for the defence shall then be exhibited, and the witnesses examined, who shall be liable to cross-examination and re-examination and to examination by the commissioners according to the like rules as the witnesses for the prosecution.

## **The Public Servants (Inquiries) Act, 1850 - [Repealed]**

17. [Repealed by the Repealing Act, 1876 (Act No. XII of 1876).]

## **The Public Servants (Inquiries) Act, 1850 - Notes of oral evidence**

18. The commissioners or some person appointed by them shall take notes in English of all the oral evidence, which shall be read aloud to each witness by whom the same was given, and, if necessary, explained to him in the language in which it was given, and shall be recorded with the proceedings.

## **The Public Servants (Inquiries) Act, 1850 - Inquiry when closed with defence. Prosecutor when entitled to reply and give evidence. Accused not entitled to adjournment**

19. If the person accused makes only an oral defence, and exhibits no evidence, the inquiry shall end with his defence; if he records a written defence, or exhibits evidence, the prosecutor shall be entitled to a general oral reply on the whole case, and may also exhibit evidence to contradict any evidence exhibited for the defence, in which case the person accused shall not be entitled to any adjournment of the proceedings, although such new evidence were not included in the list furnished to him.

## **The Public Servants (Inquiries) Act, 1850 - Power to require amendment of charge and to adjourn Reasons for refusing adjournment to be recorded**

20. When the commissioners shall be of opinion that the articles of charge or any of them, are not drawn with sufficient clearness and precision, the commissioners may, in their discretion, require the same to be amended, and may thereupon, on the application of the person accused, adjourn the inquiry for a reasonable time. The commissioners may also, if they think fit, adjourn the inquiry from time to time, on the application of either the prosecutor or the person accused on the ground of sickness or unavoidable absence of any witness or other reasonable cause. When such application is made and refused, the commissioners shall record the application, and their reasons for refusing to comply with it.

## **The Public Servants (Inquiries) Act, 1850 - Report of commissioners' proceedings**

21. After the close of the inquiry the commissioner shall forthwith report to Government their proceedings under the commission, and shall send with the record thereof their opinion upon each of the articles of charge separately, with such observations as they think fit on the whole case.

## **The Public Servants (Inquiries) Act, 1850 - Power to call for further evidence or explanation. Inquiry into additional articles of charge Reference of report of special commissioners' final orders**

22. The Government, on consideration of the report of the commissioners, may order them to take further evidence, or give further explanation of their opinions. It may also order additional articles of charge to be framed, in which case the inquiry into the truth of such additional articles shall be made in the same manner as is herein directed with respect to the original charges. When special commissioners have been appointed, the Government may also, if it thinks fit, refer the report of the commissioners to the Court or other authority to which the person accused is subordinate, for their opinion on the case; and will finally pass such orders thereon as appear just and consistent with its powers in such cases.

### **The Public Servants (Inquiries) Act, 1850 - -24. [Omitted]**

23.-24. [Omitted by section 3 and 2nd Schedule of the

### **The Public Servants (Inquiries) Act, 1850 - Saving of power of removal with-out inquiry under Act**

25. Nothing in this Act shall be construed to affect the authority of Government, for suspending or removing any public servant for any cause without an inquiry under this Act.

### **The Public Servants (Inquiries) Act, 1850 - Evidence for prosecution and examination of witnesses.Re-examination by prosecutor**

13. The oral and documentary evidence for the prosecution shall then be exhibited; the witnesses shall be examined by or on behalf of the prosecutor and may be cross-examined by or on behalf of the person accused. The prosecutor shall be entitled to re-examine the witnesses on any points on which they have been cross examined, but not on any new matter, without leave of the commissioners, who also may put such question as they think fit.

### **The Public Servants (Inquiries) Act, 1850 - Defence of accused. To be recorded only when written**

15. When the case for the prosecution is closed, the person accused shall be required to make his defence, orally or in writing, as he shall prefer. If made orally, it shall not be recorded; if made in writing, it shall be recorded, after being openly read, and in that case a copy shall be given at the same time to the prosecutor.

### **The Public Servants (Inquiries) Act, 1850 - Security from accuser left by Government, to prosecute**

6. Where the imputations shall have been made by an accuser, and the Government shall think fit to leave to him the conduct of the prosecution, the Government before appointing the commission shall require him to furnish reasonable security that he will attend and prosecute the charge thoroughly and effectually, and also will be forthcoming to answer any counter-charge or action which may be afterwards brought against him for malicious prosecution or perjury or subornation of perjury, as the case may be.

### **The Tolls Act, 1851 - Extent**

1A.

### **The Tolls Act, 1851 - Government may direct any officer to discharge its power**

13. The Government may, by notification in the official Gazette, direct that any power or duty which is conferred or imposed by this Act upon the Government, shall be exercised or discharged by any officer subordinate to it.

### **The Tolls Act, 1851 - Rule making power**

14. The Government may make rules, not inconsistent with the provisions of this Act, "to carry out the purposes of this Act."]

### **The Tolls Act, 1851 - [Repealed]**

1. [Repealed by the Repealing Act, 1870 (Act XIV of 1870).]

### **The Tolls Act, 1851 - Lessee and persons appointed by lessee deemed to be appointed to collect tolls**

10. When the right to collect tolls on any public road or bridge has been duly leased, the lessee and the persons employed by the lessee as his agent for collecting tolls shall be deemed to be persons appointed to collect tolls under this Act, and shall exercise all the powers and be subject to all the responsibilities attaching to persons so appointed.

### **The Tolls Act, 1851 - Lease of the levy of tolls**

[9.(1) The Government may, from time to time, lease by public auction the levy of tolls upon any public road or bridge, for any period not exceeding 3 years, on such terms and conditions as it may deem fit.(2) The levy of tolls shall be settled with the highest bidder by open public auction:Provided that the Government may, for sufficient reasons to be recorded in writing, refuse to accept the offer of the highest bidder, and may accept any other bid or may withdraw the tolls from such auction.(3) The lessee shall give security for the due fulfilment of the conditions of the lease, and the sums payable under the terms of the lease shall be recoverable as a public demand.

### **The Tolls Act, 1851 - Penalty for refusal to pay toll**

12. Whoever, having rendered himself liable to payment of tolls, refuses to pay such tolls, shall be liable to fine which may extend to one hundred Taka.

### **The Tolls Act, 1851 - Tolls levied deemed to be public revenue**

8. The tolls levied under this Act shall be deemed public revenue.

### **The Tolls Act, 1851 - Penalty for offences. Compensation to person aggrieved, etc**

6. Every person, other than the persons appointed to collect the tolls under this Act, who shall levy or demand any toll on any public road or bridge, or for passing through any bazar situated thereon, and also every person who shall unlawfully and extortionately demand, or take any other or higher toll than the lawful toll, or under colour of this Act seize or sell any property knowing such seizure or sale to be unlawful, or in any manner unlawfully extort money or any valuable thing from any person under colour of this Act, shall be liable on conviction before a Magistrate to imprisonment for any term not exceeding six calendar months, or to fine not exceeding two hundred

### **The Tolls Act, 1851 - Assistance by Police-officers**

5. All Police-officers shall be bound to assist the toll-collectors, when required, in the execution of this Act; and, for that purpose, shall have the same power which they have in the exercise of their common police-duties.

## **The Tolls Act, 1851 - Exemption from payment of tolls**

4. The following persons and things shall be exempt from payment of tolls:■

## **The Tolls Act, 1851 - Release of seized property on tender of dues**

Provided that, if, at any time before the sale has actually begun, the person whose property has been seized shall tender the amount of all the expenses incurred, and of double the toll payable by him, the said officer shall forthwith release the property seized.

## **The Tolls Act, 1851 - Recovery of tolls**

3. In case of non-payment of any such toll on demand, the officer appointed to collect the same may seize any of the carriages or animals on which it is chargeable, or any part of their burden of sufficient value to defray the toll; and, if any toll remains undischarged for twenty-four hours, with the cost arising from such seizure, the case shall be brought before the officer appointed to superintend the collection of the said toll, who may sell the property seized for discharge of the toll, and all expenses occasioned by such non-payment, seizure and sale, and cause any balance that may remain to be returned, on demand, to the owner of the property; and the said officer, on receipt of the property, shall forthwith issue a notice that, at noon of the next day, exclusive of Sunday, or any closed holiday, he will sell the property by auction:

## **The Tolls Act, 1851 - Power to cause levy of tolls on roads and bridges, and to appoint collectors**

2. The

## **The Tolls Act, 1851 - Exhibition of table of tolls, and Statement of penalties**

7. A table of the tolls authorized to be taken at any toll-gate or station shall be put up in a conspicuous place near such gate or station legibly written or printed in

## **The Tolls Act, 1851 - Lessee may compound with any person**

11. The lessee of any toll bar may compound with any person for a certain sum to be paid by such person for himself or for any vehicles or animals kept by him in lieu of the prescribed rates.

## **The Legal Representative Suits Act, 1855 - Death of either party not to abate suit**

2. No action commenced under the provisions of this Act shall abate by reason of the death of either party, but the same may be continued by or against the executors, administrators or representatives of the party deceased: Provided that, in any case in which any such action shall be continued against the executors, administrators or representatives of a deceased party, such executors, administrators or representatives may set up a want of assets as a defence to the action, either wholly or in part, in the same manner as if the action had been originally commenced against them.

## **The Legal Representative Suits Act, 1855 - Executors may sue and be sued in certain cases for wrongs committed in life-time of deceased**

1. An action may be maintained by the executors, administrators or representatives of any person deceased for any wrong committed in the time of such person, which has occasioned pecuniary loss to his estate, for which wrong an action might have been maintained by such person, so as such wrong shall have been committed within one year before his death; and the damages, when recovered, shall be part of the personal estate of such person: